Number 8 *of* 1997

CENTRAL BANK ACT 1997

REVISED

Updated to 1 June 2021

This Revised Act is an administrative consolidation of the *Central Bank Act 1997*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including the *Planning and Development, Heritage and Broadcasting (Amendment) Act 2021* (11/2021), enacted 30 May 2021, and all statutory instruments up to and including the *Redundancy Payments Act 1967 (Section 12A(2)) (Covid-19) (No. 2) Order 2021* (S.I. No. 284 of 2021), made 1 June 2021, were considered in the preparation of this Revised Act.

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Number 8 *of* 1997

CENTRAL BANK ACT 1997

REVISED

Updated to 1 June 2021

AN ACT TO MAKE PROVISION FOR THE REGULATION BY THE CENTRAL BANK OF IRELAND OF PAYMENT SYSTEMS AND BUREAUX de CHANGE, AND TO AMEND AND EXTEND THE CENTRAL BANK ACTS, 1942 TO 1989 AND OTHER ENACTMENTS, AND TO PROVIDE FOR RELATED MATTERS. [31*st March*, 1997]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS:

PART I

Preliminary and General

Short title, construction, collective citation and commencement.

1. — (1) This Act may be cited as the Central Bank Act, 1997.

(2) This Act shall come into operation on such day or days as may be appointed by order or orders made by the Minister, either generally or with reference to any particular purpose or provision, and different days may be appointed for different purposes and different provisions of this Act.

(3) This Act, other than *sections 3*, *36* to *49*, *60*, *64* to *68*, *78* to *83* and *85* and the Central Bank Acts, 1942 to 1989, shall be construed together as one Act and may be cited together as the *Central Bank Acts, 1942 to 1997*.

Interpretation.

2. — (1) In this Act, unless the context otherwise requires—

"the Act of 1942" means the Central Bank Act, 1942;

"the Act of 1971" means the Central Bank Act, 1971;

"the Act of 1989" means the Central Bank Act, 1989;

F1**[**'Bank' means the Central Bank F2**[**...**]** of Ireland;**]**

F3**[**'Central Bank Acts' means the Central Bank Act 1942 as amended from time to time, and includes all Acts that are to be construed together with that Act as one Act;**]**

'contravene' includes fail to comply;

"the Court" means the High Court;

(4) A provision of a regulation under this section may—

(*a*) apply generally or be limited in its application by reference to specified exceptions or factors, or

(*b*) apply differently according to different factors of a specified kind, or

(*c*) authorise any matter or thing to be from time to time determined, applied or regulated by a specified person or body,

or may do any combination of those things.**]**

F100**[**Performance and exercise of Bank's functions and powers to be consistent with performance of certain responsibilities of Governor.

36N.—The Bank shall perform and exercise the functions and powers imposed or conferred on it by this Part in a manner consistent with the performance by the Governor of the responsibilities imposed on the Governor by section 19A of the Central Bank Act 1942.**]**

PART VI

Amendments to Investment Intermediaries Act, 1995

Amendment of section 4 of Investment Intermediaries Act, 1995.

37. — The Investment Intermediaries Act, 1995, is hereby amended by the substitution of the following section for section 4:

" Supervisory authority.

4.— (1) In this Act, ' supervisory authority ' means the Bank.

(2) The Bank shall be the supervisory authority for all investment business firms.

(3) Notwithstanding anything to the contrary in this Act, this Act shall be read as if there were only one supervisory authority for the purposes of this Act.".

Amendment of section 8 of Investment Intermediaries Act, 1995.

38. — Section 8 of the Investment Intermediaries Act, 1995, is hereby amended—

(*a*) by the deletion after "The Bank" of " and the Minister for Enterprise and Employment ",

(*b*) by the substitution of " authority " for "authorities".

Amendment of section 10 of Investment Intermediaries Act, 1995.

39. — Section 10 of the Investment Intermediaries Act, 1995, is hereby amended by the insertion of the following subsection after subsection (16):

"(17) Every application for authorisation made to the Minister for Enterprise and Employment under this Act before the coming into operation of this section is hereby deemed to have been made to the Bank.".

Amendment of section 20 of Investment Intermediaries Act, 1995.

40. — Section 20 (5) of the Investment Intermediaries Act, 1995, is hereby amended by the deletion of " shall co-operate with the other supervisory authority in the State and ".

Amendment of section 22 of Investment Intermediaries Act, 1995.

41. — Section 22 of the Investment Intermediaries Act, 1995, is hereby amended—

(*a*) by the deletion in subsection (5) of " the Minister for Enterprise and Employment or ",